

Tentative Rulings
June 22, 2026
Department S-17
Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

Unless you wish to submit on the tentative ruling, you must appear for the hearing either in person, CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If you wish to submit to the tentative, please call the Judicial Assistant at (909) 708-8715 in advance of the hearing. If all parties submit on a tentative ruling, it will become final. The tentative ruling may seek input on particular issues and direct appearance. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: Since January 9, 2023, the court no longer provides an official Court Reporter to transcribe proceedings. Parties who wish to have a transcript must retain their own private reporter and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Parties who do not retain their own reporter have waived the right to one.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

14. *Drive Insurance Co. v. Jireh Auto Transportation, et al*, Case No. CIVSB2536009
Defendant Jireh's Demurrer
6/22/26, 10:00 a.m., Dept. S-17

This hearing was continued from the original April 8, 2026, date

The Court would **SUSTAIN** the demurrer with thirty (30) days' leave to amend.

Here, the movant's filed its demurrer, alleging uncertainty. Plaintiff failed to substantively oppose the demurrer; although, it submitted a declaration requesting that leave to amend be granted. (See Nivinskus Decl., ¶7.) Thus, it appears the arguments are conceded. (*DuPont Merck Pharmaceutical Co. v. Superior Court* (2000) 78 Cal.App.4th 562, 566 ["By failing to argue the contrary, plaintiffs concede this issue."]; see *Pacifica First National, Inc. v. Abekasis* (2021) 50 Cal.App.5th 654, 657 [Not returning to a topic on reply, "is a concession."]) The Court would, therefore, sustain with leave to amend.

15. *Navarro Morales v. Blue Star Claims, et al*, Case No. CIVSB2607908
Petitioner Navarro Morales's Petition to Compel Arbitration
6/22/26, 10:00 a.m., Dept. S-17

Tentative Ruling

The Court would **GRANT**, in part, and compel Respondent U.S. Fire to arbitrate Petitioner's claims. The Court would, however, **DENY** the motion as to Respondents Blue Star and would further **DENY** the request to consolidate the arbitration proceedings with the proceeding involving Mobilitas.

The Court would **DENY** Petitioner's request for fees.

Case Summary

Through the pending proceeding, Petitioner Navarro Morales seeks to compel Respondents Blue Star Claims, LLC (Blue Star) and United States Fire Insurance Co. (U.S. Fire) to arbitrate his insurance claim. The petition indicates Morales was working as a rideshare driver and was injured in a rear-end collision in February 2024, by an uninsured motorist. At the time of the collision, the rideshare service maintained the at issue insurance for its drivers that included uninsured motorist coverage. That insurance policy also contains an arbitration provision.

Although Petitioner submitted a claim for benefits and demanded arbitration, Blue Star denied that arbitration proceedings were required. The Petition also indicates Blue Star administered the policy, but the documents attached to the Petition indicates U.S. Fire was the insurer.